

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE REPEALING IN ITS ENTIRETY CHAPTER 12.16, TREES AND SHRUBS, AND CREATING A NEW CHAPTER 12.16, TREES, OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT HEREBY ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Chapter 12.16, Trees and Shrubs, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming, is hereby repealed in its entirety.

Section 2. That Chapter 12.16, Trees, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming, is hereby created as follows:

**CHAPTER 12.16
TREES**

12.16.010 Purpose–Authority–General provisions.

A. The city recognizes the substantial economic, environmental, aesthetic and public health benefits of trees within the community. It is the policy of the city to protect and enhance the community's urban forest. The purpose of this chapter is to promote and protect the public safety and general welfare by providing regulation, and to establish policies regarding the planting, maintaining and removal of trees through recommended horticultural and arboricultural practices, and to establish and enforce professional standards for city business licensees, pursuant to licensing provisions of Chapters 5.04 and 5.80 of the city code, pertaining to operating a tree maintenance business.

B. Authority is granted to cities and towns by Wyo. Stat. § 15-1-101(a)(xiii) and (xli) to license and regulate business activities within the city for the health, safety and welfare of its citizens.

C. The requirements of this chapter will not be deemed to impose any liability for damages or duty of care and maintenance upon the city or any of its officers, agents or employees.

12.16.020 City forester–Urban Forestry guidelines.

A. To promote the above purpose, the city shall employ a person known as the city forester who shall have the power to establish and enforce rules, regulations, standards, and specifications for the protection, planting, pruning, treatment, removal or any maintenance of trees located upon the right-of-way of any street, alley, sidewalk or other city owned property in the city and concerning the performance of such work on public or private property within the city by licensees under Chapters 5.04 and 5.80. These guidelines shall be titled "City of Cheyenne Urban Forestry guidelines," shall be in writing, and shall not be effective until signed by the mayor. These guidelines, shall be on file and open for inspection by the public with the forestry division and office of the city clerk.

B. The city forester or designee is authorized to assess basic costs and fees, including an administrative fee to cover expenses related to personnel and equipment relative to enforcement of the provisions of this chapter, and as set out in the Urban Forestry guidelines.

12.16.030 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

“City forester” shall mean the manager or director of the Urban Forestry division or designee.

“City property” shall mean and include all real property owned by and leased to the city of Cheyenne, not including the public right-of-way.

“Downtown” means the boundaries of the Cheyenne Downtown Development Authority District as described in Section 2.76.040 of the city code.

“Maintenance” shall mean any and all work performed on trees including, but not limited to, planting, watering, pruning, removing, stump grinding, treating for insects or diseases, protecting and enhancing soils, and preserving and protecting trees during construction.

“Noxious tree” means a tree that is designated a “designated noxious weed” by the Wyoming Weed and Pest Control Act, Wyoming Statute § 11-5-101, *et seq.*

“Nuisance tree” shall mean a tree with undesirable characteristics as defined in the Urban Forestry guidelines and declared to be a public nuisance by the city forester or designee.

“Private property” means all land and improvements, including fixtures and appurtenances, located within the property lines of a property.

“Property owner” shall mean any person or entity having a legal or equitable interest in real property and its fixtures and appurtenances, including the interests of a tenant or lessee.

“Public right-of-way” shall mean the entire area between the curb, or street where no curb exists, and the property line of a property and between the centerline of the alley and property line of a property.

“Responsible party” shall mean the property owner or an entity or person who, acting as an agent for or in any other legal capacity on behalf of the owner, has authority over property subject to this chapter or who is responsible for the maintenance or management of said property.

“Tree” or “trees” shall mean any perennial woody plant, usually, but not necessarily, single stem and long-lived with a height greater than overall spread.

12.16.040 Responsibility for trees in public right-of-way.

A. Public right-of-way. The responsible party of property abutting the public right-of-way shall have the duty to maintain trees on the abutting portions of the public right-of-way.

B. Downtown. The city recognizes the significance of its downtown relative to the community’s economy, culture and history, and supports trees and landscaping features to enhance the vitality of downtown. The city shall be responsible for the planting, care, maintenance, and removal of trees in the public right-of-way within the designated Downtown Development Authority Special District.

C. Written Agreements. A written agreement may establish responsibility for trees located on public rights-of-way as the responsibility of the city or another entity such as a homeowner’s association or special district. This written agreement shall be approved by the city forester and the city attorney’s office and filed with the city clerk.

12.16.050 Obstruction of the public right-of-way.

A. The city is responsible for clearing trees away from traffic signs and traffic control devices to maintain clear visibility.

B. The responsible party for any property located within the city shall:

1. Maintain all trees to provide clearance over streets and alleys of at least fourteen (14) feet and over sidewalks of at least eight (8) feet.

2. Maintain an unobstructed site distance triangle pursuant to the Urban Forestry guidelines.

3. Remove all stumps in the public right-of-way to at least eight (8) inches below original grade and replace with top soil.

C. When the city forester or designee determines a tree is in such a condition that it endangers the safe public use of streets, alleys, and sidewalks, the city forester shall issue a notice of violation requiring corrective steps in accordance with Section 12.16.112.

D. In the case of an emergency, the city forester or designee may cause the immediate necessary remedial action in accordance with Section 12.16.110 and Section 12.16.112.

**12.16.060 Permit required for planting, pruning or removal of trees in public places–
Application–Inspection.**

A. It shall be unlawful for any person to plant, cut, trim, prune, remove, destroy or cause to be planted, cut, trimmed, pruned, removed or destroyed any tree within the public right-of-way of any street or sidewalk, or upon other city-owned property within the city without having first obtained a written permit therefor. For purposes of this section, “within the public right-of-way of any street or sidewalk, or upon other city-owned property” shall not include trees located on private property that encroach upon or overhang public property. Owners of properties adjoining alley rights-of-way may cut, trim, prune or remove trees located within such rights-of-way without a permit.

B. Any person desiring to plant, cut, trim, prune, remove or destroy any tree within the public right-of-way of any street or sidewalk, or upon other city-owned property within the city, must first file a written application for a permit at the office of the city forester, if a permit is required under this section. This application is available from the city forester and it must set forth the name and address of the applicant, the name and address of the person doing the work, the kind or species of tree to be planted, cut, trimmed, pruned, removed or destroyed and the location of the same, together with such other information as the city forester shall require.

C. The applicant must, at the time of making the application, agree in writing, in all respects, to hold the city harmless and protect the city and the public at all times in connection with the planting, cutting, trimming, pruning, removal or destruction of any tree to be planted, cut, trimmed, pruned, removed or destroyed under such permit.

D. The city forester shall inspect the location of the tree to be planted, cut, trimmed, pruned, removed or destroyed, and if, in his or her opinion, it is desirable that such tree be planted, cut, trimmed, pruned, removed or destroyed, as the case may be, the city forester shall issue a permit. Such permit shall set forth the name of the person who shall perform the work, the location at which the tree is or shall be located and any conditions or requirements made by the city forester in connection therewith.

12.16.070 Nuisance and noxious trees.

A. Nuisance trees. The city forester or designee may declare certain trees to be a nuisance tree as described in the Urban Forestry guidelines.

B. Noxious trees. If the city forester or designee determines a tree is a noxious tree, it shall be controlled pursuant to state law.

12.16.080 Infected or infested trees.

A. The city forester or designee may inspect any tree or tree part, including logs or branches existing or growing upon any property located within the city. The city forester or designee shall conduct surveys to determine if any destructive or communicable disease or other pestilence exists which may be detrimental to or endanger the good health and well being of trees in the city.

B. Upon discovery of any infected or infested tree, the city forester shall notify the responsible party in writing, subject to Section 12.16.112, of the infected or infested tree and order such responsible party to eradicate, remove, or otherwise control the condition within the time specified in the written notice.

C. Failure to comply with a notice regarding an infected or infested tree will be followed pursuant to Section 12.16.112.

12.16.090 Tree protection, damages and cost recovery.

A. It shall be unlawful to injure, damage, destroy or remove any tree situated upon city property.

B. No person shall attach any material to a tree on city property.

C. Trees on city property shall be protected during construction projects as outlined in the Urban Forestry guidelines.

12.16.110 Right of entry.

A. In order to accomplish the purposes of this chapter, the city forester or designee, or any contractor hired by the city forester, shall have the right to enter public or private property within the city in order to inspect trees and other vegetation upon written notice conspicuously posted upon the affected property and also deposited in the United States mail, addressed to the owner of record at the address on the assessment roll of the Laramie County Assessor. The notice shall set forth a date certain for inspection and entry.

B. Subject to the notice requirements of Section 12.16.112, the city forester or a contractor hired by the city forester is also authorized to go upon any public or private property in the city for the purpose of cutting, trimming, pruning and removing trees that the city forester has determined present a danger to persons using, or property located upon, the public rights-of-way or other city-owned property within the city, or in order to treat or eliminate a destructive or communicable disease or insect infestation.

C. In the case of an emergency or where the city forester has determined an immediate threat to public safety, the city forester shall have the authority to take any action or abatement necessary to eliminate the threat to public safety.

12.16.111 Interference.

No person shall prevent, delay or interfere with the city in regards to the enforcement of this chapter or activities required in conducting the urban forestry program; provided, however, nothing contained in this chapter shall be construed as an attempt to prohibit any legal or equitable remedy in any court of competent jurisdiction for the protection of property rights by the owner of property within the city.

12.16.112 Notice.

A. Notice of violation. The city forester or designee shall give written notice to the responsible party of any property to correct any condition in order to comply with the terms of this chapter. The notice shall describe the property affected and set forth the action to be taken by the responsible party. The notice shall also prescribe a time for compliance. The notice shall be conspicuously posted upon the affected property and also deposited in the United States mail, addressed to the owner of record at the address on the assessment roll of the Laramie County Assessor.

B. Failure to comply. Should the responsible party of any property refuse or fail to comply with the terms of a notice during the time prescribed, the city or its designee may enter upon the premises and remove, treat or otherwise care for trees and vegetation in order to correct the existing condition. In the event that the city is required to perform any corrective work on the premises, the costs thereof shall be assessed against the responsible party.

C. Abatement and costs. If the city abates a violation on private property or on the public right-of-way, the city forester or designee will notify the responsible party of the cost of abatement by United States mail addressed to the owner of record at the address on the assessment roll of the Laramie County Assessor. The costs of abatement shall include all direct and indirect costs abatement including, but not limited to, manpower, equipment, expenses and administrative costs incurred by the city. Such costs shall be due and owing from the property owner to the city. Such costs, expenses and fees may be collected in any manner prescribed by law.

12.16.113 Violation–Penalty.

Any person who violates the provisions of this chapter will be deemed guilty of a misdemeanor, punishable pursuant to the general penalty provision of the city code.

Section 3. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____
SECOND READING: _____
THIRD AND FINAL READING: _____

Marian J. Orr, Mayor

(SEAL)
ATTEST:

Carol Intlekofer, City Clerk

Published: Wyoming Tribune-Eagle